

Court No. - 2

Case :- WRIT - C No. - 2457 of 2025

Petitioner :- Tasneem Kazmi

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited Lko. Thru. Managing Director And 6 Others

Counsel for Petitioner :- Pradyumn Shukla, Qasim Abbas Zaidi

Counsel for Respondent :- Aprajita Bansal

Hon'ble Rajan Roy, J.

Hon'ble Om Prakash Shukla, J.

1. Heard learned counsel for the petitioner and Ms. Gursimran Kaur, learned counsel holding brief of Ms. Aprajita Bansal, learned counsel for opposite parties no. 1 to 4.
2. Considering the law on the subject and the order proposed to be passed, issuance of notice to the opposite parties no. 5 to 7 is dispensed with.
3. The petitioner's counsel relies upon an order passed on 21.01.2025 in Writ C No. 525 of 2025 (Mohd. Nooruz Zaman vs. Madhyanchal Vidyut Vitaran Nigam Ltd. and others) in the case of another flat owner. He says that the facts are similar. However, counsel for the electricity corporation says that indemnity bond has not been submitted by the petitioner. The petitioner claims to be tenant of the premises in question and that he is in possession of the same. Some proceedings are pending before the Rent Tribunal.
4. However, the petitioner's counsel relies upon the judgment of this court in the case of ***Seema Mansoor vs. U.P. Power Corporation Ltd. and Ors; (2015) 1 All LJ 44*** and the judgment of Hon'ble the Supreme Court in ***Sri Chandu Khamaru vs. Nayan Malik & Ors.; (2011) 12 SCC 314*** to claim separate connection.
5. Subject to an inquiry as to tenancy and possession of the petitioner of the premises in question, if an indemnity bond is submitted by the petitioner, then, the concerned opposite party shall process the same for grant of separate electricity connection as per rules, especially Para 4.4 of the U.P. Electricity Supply Code, 2005. This exercise shall be completed at the earliest, say, within a period of four weeks.
6. It is however made clear that our order shall not confer any right of possession or title in respect of the premises in question in favour of the petitioner nor will it prejudice the opposite parties no. 5 to 7 in any proceedings which may be pending in respect of the premises in question or may be initiated hereinafter.
7. The writ petition is ***disposed of***.

[Om Prakash Shukla, J.] [Rajan Roy, J.]

Order Date :- 12.3.2025

Santosh/-